

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tim Wheelock	Team: Squad #15	CCRB Case #: 202401245	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 11/09/2023 11:45 AM	Location of Incident: Southwest corner of Graff Avenue and Miles Avenue	18 Mo. SOL 5/9/2025	Precinct: 45
Date/Time CV Reported Mon, 02/05/2024 8:09 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 02/05/2024 8:09 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Robert Rodriguez	14441	926015	045 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Nicholas Napoli	12884	967621	045 PCT
2. PO Jonathan Martinez	05245	965790	045 PCT
3. PO Maggie Gonzalez	12264	965731	045 PCT
4. PO Francisco Floresayala	24211	973394	045 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Robert Rodriguez	Force: Police Officer Robert Rodriguez struck § 87(2)(b) with a vehicle.	A . Unable to Determine
B . PO Robert Rodriguez	Abuse: Police Officer Robert Rodriguez seized § 87(2)(b)'s property.	B . Within NYPD Guidelines
C . PO Robert Rodriguez	Abuse: Police Officer Robert Rodriguez issued retaliatory summonses to § 87(2)(b)	C . Substantiated

Case Summary

On February 5, 2024, § 87(2)(b) filed this complaint via the CCRB website.

On November 9, 2023, § 87(2)(b) was riding his electric motorcycle on East Tremont Avenue in the Bronx when Police Officer Robert Rodriguez and Police Officer Jonathan Martinez, of the 45th Precinct, attempted to pull him over for a traffic stop. PO Rodriguez allegedly swerved his vehicle towards § 87(2)(b) in an attempt to strike him (**Allegation A: Force-Vehicle, Unable to Determine**). Fearing for his safety, § 87(2)(b) drove onto the sidewalk towards his home on Balcom Avenue. § 87(2)(b) dismounted at the corner of Graff Avenue and Miles Avenue and surrendered to PO Rodriguez and PO Martinez who arrived moments later. § 87(2)(b) electric motorcycle was seized and impounded (**Allegation B: Abuse of Authority-Seizure of Property, Within NYPD Guidelines**). § 87(2)(b) was arrested and charged with § 87(2)(a) 160.50 § 87(2)(b) (**Board Review #01**). PO Rodriguez also issued § 87(2)(b) 64 summonses (**Board Review #02, #03**) for violating 19 New York State Vehicle and Traffic Laws and New York City Traffic Rules (**Allegation C: Abuse of Authority-Retaliatory Summons, Substantiated**). § 87(2)(b) was released from Central Bookings the following day, November 10, 2023. As of the time of this report, § 87(2)(b) is still disputing these summonses in Traffic Court, but his criminal charges have been dismissed.

Body-worn camera (BWC) video was obtained for this complaint (**Board Review #04, #09, #12, #13**)

Findings and Recommendations

Allegation (A) Force: Police Officer Robert Rodriguez struck § 87(2)(b) with a vehicle.

During his CCRB interview (**Board Review #05, #06, #07**), § 87(2)(b) stated that he was driving on East Tremont Avenue in the Bronx when he noticed a marked NYPD motor vehicle activate its lights and sirens behind him. While § 87(2)(b) described his vehicle as an electric bicycle, the investigation determined that he was operating an electric motorcycle. § 87(2)(b) acknowledged that he was not wearing a helmet, had run a red light, and did not have a license plate on his vehicle. § 87(2)(b) believed that the officer wished to pass him to respond to an emergency call, so § 87(2)(b) pulled to the side of the road to allow the marked vehicle to pass. As he pulled to the side, the vehicle's operator, PO Rodriguez, swerved towards § 87(2)(b) and came within inches of striking him on his electric motorcycle. PO Rodriguez did not make contact with § 87(2)(b) and there was no collision. Fearing for his life, § 87(2)(b) drove away to evade PO Rodriguez.

PO Robert Rodriguez (**Board Review #08**) was performing traffic enforcement duties in the vicinity of East Tremont Avenue in the Bronx when, at approximately 11:40am, he observed § 87(2)(b) run two red light signals on his electric motorcycle. PO Rodriguez, who was the vehicle operator, began to pursue § 87(2)(b) with the intention of pulling him over and issuing summonses for the red light infractions. PO Rodriguez did not activate the turret lights or sirens and attempted to drive closer to § 87(2)(b) to speak to him. As PO Rodriguez drove closer to § 87(2)(b) he observed § 87(2)(b) drive away and run four more red lights. PO Rodriguez then activated the internal emergency lights of his vehicle on the first and lowest setting and began to pursue § 87(2)(b). At no point did PO Rodriguez' vehicle collide with or otherwise touch § 87(2)(b) or his electric motorcycle during the pursuit.

PO Rodriguez' BWC footage (**Board Review #09**) shows PO Rodriguez turn the steering wheel to the left and bring his vehicle to a stop from **00:10-00:14** in the recording. § 87(2)(b) is not yet

visible in this clip. From **00:28-00:38** in the recording, PO Rodriguez makes a left turn and drives his vehicle approximately a foot away from § 87(2)(b). PO Rodriguez brings his vehicle to a stop and § 87(2)(b) drives away down the street. PO Rodriguez pursues § 87(2)(b) to the end of the street and exits his vehicle at the **00:50** mark in the recording. PO Rodriguez' BWC footage does not show any contact between PO Rodriguez' and § 87(2)(b) vehicles at any point during the pursuit.

An AVL history and map was obtained by the investigation (**Board Review #10**). The AVL history records the speed of PO Rodriguez's vehicle at 11-second intervals during this incident. It shows that PO Rodriguez repeatedly accelerated and decelerated in temporal proximity to PO Rodriguez' BWC footage. The speed of the vehicle, however, does not indicate how PO Rodriguez steered his vehicle, including whether he attempted to strike § 87(2)(b) with it.

NYPD Patrol Guide Procedure 221-15 (Board Review #11) prohibits police officers from utilizing the following tactics during a vehicle pursuit in order to stop a vehicle: A) Ramming, B) Placing moving Department vehicle in a position to be struck by the pursued vehicle, C) Driving alongside the pursued vehicle, D) Roadblocks (unless specifically directed by supervisory personnel).

PO Rodriguez denied operating his vehicle in any manner with the intention of hitting or dangerously cutting off § 87(2)(b) though he did state that at one point their vehicles were as close as two to three inches apart from one another. § 87(2)(g)

§ 87(2)(g) it is therefore recommended that **Allegation A** be closed as **Unable to Determine**.

Allegation (B) Abuse of Authority: Police Officer Robert Rodriguez seized § 87(2)(b) property.

§ 87(2)(b) (**Board Review #05, #06, #07**) stated that his electric motorcycle was seized by PO Rodriguez and that it was not returned to him. § 87(2)(b) vehicle was not registered with the DMV, and he was operating it without a motorcycle license or insurance. § 87(2)(b) later learned that his electric motorcycle was destroyed by the NYPD.

At the **19:20** mark of PO Martinez' BWC (**Board Review #12**), after stopping § 87(2)(b) PO Rodriguez says, "We're gonna give him a summons for everything, and we're gonna seize the bike." At the **21:00** mark, PO Rodriguez calls for a tow truck to take § 87(2)(b) electric motorcycle from the scene. At the **00:20:00** mark of Police Officer Nicholas Napoli's BWC footage (**Board Review #13**), PO Napoli reads through some of the summonses issued to § 87(2)(b) specifically one for "operating out of class," and says, "You don't have a motorcycle license." § 87(2)(b) scoffs and says, "You don't need a license for that bike. Motorcycle license? For an electric bike?"

The investigation obtained property vouchers (**Board Review #14**) prepared by the arresting officer, PO Napoli, showing that § 87(2)(b) motorcycle was seized and vouchered as arrest evidence.

PO Rodriguez took a photograph of a metal plate attached to § 87(2)(b) motorcycle and attached it in his memo book (**Board Review #15**). The plate displays the vehicle's VIN number, weight, and maximum power in watts. § 87(2)(b) motorcycle weighed approximately 485lbs and had a

3000W motor.

NYPD Patrol Guide Procedure 218-01 (Board Review #16) states that when taking a civilian's vehicle into custody police officers are required to notify the Desk Officer if the property in question is a vehicle that cannot be driven in order to request a tow. Officers are also required to, "ensure all property is properly tagged, packaged or sealed, and clearly identified by INVOICE number and barcode."

Vehicle and Traffic Law § 123 (Consol.) (Board Review #17) defines a motorcycle as, "Every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground, but excluding a tractor."

Vehicle and Traffic Law § 125 (Consol.) (Board Review #18) defines a motor vehicle as, "Every vehicle operated or driven upon a public highway which is propelled by any power other than muscular power..."

Vehicle and Traffic Law § 410(1) (Consol.) (Board Review #19) states that, "No motorcycles shall be operated or driven upon the public highways of this state without first being registered..."

People v Marasa, 284 AD2d 971 [4th Dept 2001] (Board Review #20) states that police officers are authorized to impound improperly or unregistered vehicles.

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **Within NYPD Guidelines**.

Allegation (C) Abuse of Authority: Police Officer Robert Rodriguez issued retaliatory summonses to § 87(2)(b)

§ 87(2)(b) **(Board Review #05, #06, #07)** stated that he was issued 60 summonses by PO Rodriguez because of this incident. § 87(2)(b) admitted that he rode his electric motorcycle without a helmet, that it was not registered with the DMV, that he ran several red lights, and that he drove on the sidewalk twice. § 87(2)(b) did not observe any pedestrians on the sidewalk and reentered the roadway when he felt it was safe to do so. He denied driving against the flow of traffic or that other motorists or pedestrians had to maneuver to avoid him. He proceeded to drive in the direction of his home on Balcom Avenue but stopped on the corner of Miles Avenue and Graff Avenue and dismounted to surrender. Approximately 10 minutes later, PO Floresayala and PO Gonzalez transported him to the 45th Precinct for arrest processing.

PO Rodriguez **(Board Review #08)** stated that he observed § 87(2)(b) commit approximately 70 violations during this incident and issued § 87(2)(b) 64 summonses **(Board Review #02, #03)** in total and stated he could have issued more if he had chosen to do so. During the pursuit, PO Rodriguez observed § 87(2)(b) drive onto the sidewalk, turn his motorcycle around and re-enter traffic going northbound in the southbound lane on East Tremont Avenue. Pedestrians were on the sidewalk when § 87(2)(b) drove onto it, and he came close to striking them. As § 87(2)(b) reentered the

street, he drove counter to the flow of traffic, multiple drivers stopped abruptly and swerved to avoid colliding with § 87(2)(b). § 87(2)(b) was speeding, running red lights, crossing double yellow lines, and not signaling prior to changing lanes. PO Rodriguez used the public address system and ordered § 87(2)(b) to stop and pull over before he hurt himself or someone else. PO Rodriguez continued to pursue and issued additional commands to pull over via the PA system. At one point, § 87(2)(b) appeared to stop, and PO Rodriguez stopped his vehicle near § 87(2)(b). § 87(2)(b) was approximately two to three inches away from the driver's side door at this point. PO Martinez exited the vehicle while PO Rodriguez said, "Just stop, pull over, stop." § 87(2)(b) replied, "What?" and drove away as soon as PO Martinez was fully outside the police vehicle. § 87(2)(b) drove onto the sidewalk a second time at 50mph. PO Rodriguez did not measure the speed with a radar gun, but relied on his experience as a police officer to determine the speed § 87(2)(b) was traveling. PO Rodriguez pursued § 87(2)(b) for approximately two minutes, across approximately 10 city blocks, but did not recall the exact route of pursuit. At some point, PO Rodriguez passed and pulled ahead of § 87(2)(b) near an intersection. § 87(2)(b) stopped and dismounted his motorcycle as PO Rodriguez parked in front of him. PO Rodriguez and PO Martinez placed § 87(2)(b) under arrest, then PO Rodriguez called for an additional unit to transport § 87(2)(b) to the 45th Precinct stationhouse. After § 87(2)(b) was transported to the stationhouse, PO Rodriguez drove to the 45th Precinct stationhouse. Approximately 20 minutes later, PO Rodriguez began to write the summonses at the stationhouse. PO Rodriguez did not consult his BWC footage when preparing these summonses; he relied solely on his memory of the incident. PO Rodriguez has worked as a traffic enforcement officer since 2006 and stated that he issued more summonses to § 87(2)(b) for this incident than he has ever issued to a single civilian in his career.

An AVL history and map was obtained by the investigation (**Board Review #10**). It shows that PO Rodriguez accelerated above New York City's 25mph speed limit multiple times, beginning approximately two minutes before his BWC recording begins. It reached a speed of 45.10mph at 4005 East Tremont Avenue. Later in the pursuit, the vehicle reached a speed of 48.94mph at 2809 Lawton Avenue. The vehicle reached a speed of 45.03mph in the seconds before coming to a full stop at 274 Balcom Avenue for approximately nine seconds before it accelerated to 6.89mph. At 11:39:08, PO Rodriguez' vehicle comes to a complete stop again at 2711 Miles Avenue.

PO Martinez' BWC footage (**Board Review #12**) captures approximately one minute of his and PO Rodriguez' pursuit of § 87(2)(b) from the **00:00:00-00:54** marks. It shows PO Rodriguez driving at a high rate of speed and making multiple turns.

PO Rodriguez issued 64 summonses to § 87(2)(b) (**Board Review #02, #03**) for violating 19 different vehicle and traffic laws. § 87(2)(b) received three summonses for failing to provide documents (**Board Review #21**), two summonses for speeding (**Board Review #22**), four summonses for obstructing a lane of traffic (**Board Review #23**) and four summonses for running stop signs (**Board Review #24**).

A Google Street View search revealed that the intersection of Miles Avenue and Revere Avenue is not controlled by a stop sign in any direction (**Board Review #25**). The search also revealed that the intersection of Miles Avenue and Calhoun Avenue does not have a stop sign controlling Eastbound and Westbound traffic on Miles Avenue (**Board Review #26**).

Vehicle and Traffic Law § 1180-a (Consol.) (**Board Review #27**) states that, "No person shall drive a vehicle at a speed greater than is reasonable and prudent under the conditions and having regard to the actual and potential hazards then existing."

Vehicle and Traffic Law § 1172(a) (Consol.) (**Board Review #28**) states that, "Except when directed

to proceed by a police officer, every driver of a vehicle approaching a stop sign shall stop at a clearly marked stop line, but if none, then shall stop before entering the crosswalk on the near side of the intersection...”

34 RCNY § 4-07 (b) (1) (Board Review #29) states that, “No person shall operate a vehicle in a manner which obstructs traffic in lanes specifically designated for the movement of traffic. Such lanes include, but are not limited to, no standing zones and no stopping zones.”

34 RCNY § 4-08 (f) (1) (Board Review #30) states that, “No person shall stand or park a vehicle in any of the following places, unless otherwise indicated by posted signs, markings or other traffic control devices, or at the direction of a law enforcement officer: (1) **Double Parking**. On the roadway side of a vehicle stopped, standing, or parked at the curb...”

34 RCNY § 4-12 (a) (3) (Board Review #31) states that, “Vehicle operators must present and/or surrender their operator's license, vehicle registration and insurance documents upon request of a law enforcement officer.”

§ 87(2)(g)

PO Rodriguez issued two summonses to § 87(2)(b) for running stop signs at intersections that were not controlled by stop signs in the direction they were travelling (**Board Review #32, #33**). A Google Maps Street View search showed that the intersection of Miles Avenue and Revere Avenue is not controlled by a stop sign in any direction (**Board Review #27**), and the intersection of Miles Avenue and Calhoun Avenue does not have a stop sign controlling Eastbound/Westbound traffic on Miles Avenue (**Board Review #28**). § 87(2)(b) was summonsed for violating stop signs at both intersections. § 87(2)(g)

PO Rodriguez issued § 87(2)(b) four summonses for obstructing a lane of traffic (**Board Review #23**). New York City Traffic Rules 34 RCNY § 4-07 (b) (1) (Board Review #30) and 34 RCNY § 4-08 (f) (1) (Board Review #31) regulate parked vehicles and outline prohibited parking behaviors. At no point did PO Rodriguez state (**Board Review #08**) that he observed § 87(2)(b) illegally park his electric motorcycle during this incident. The available BWC evidence (**Board Review #02**), AVL history and map (**Board Review #10**), and § 87(2)(b) (**Board Review #05, #06, #07**) and PO Rodriguez’ statements (**Board Review #08**) show that § 87(2)(b) did not stop his vehicle until he laid his electric motorcycle on the ground at the corner of Miles Avenue and Graff Avenue, which was promptly towed after he was placed under arrest. § 87(2)(g)

PO Rodriguez also issued § 87(2)(b) three summonses for failing to present requested documents (**Board Review #21**) after he was pulled over. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

. It is therefore recommended that **Allegation C** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Rodriguez has been a member of service for 24 years and has been a subject in 20 CCRB complaints and 42 allegations, of which nine were substantiated:
 - 200915966 involved a substantiated allegation of frisking a civilian against PO Rodriguez. This complaint reached the statute of limitations, and no discipline was listed for either the Board or the NYPD.
 - 201704889 involved substantiated allegations of abuse “other,” gun pointed, threat of force, threat of summons, seizure of property, and refusal to provide name and or shield number against PO Rodriguez. The Board recommended charges and the NYPD imposed a loss of 75 vacation days.
 - 201704889 involved substantiated allegations of discourteous language and search of a vehicle against PO Rodriguez. The Board recommended charges and the NYPD imposed a loss of 25 vacation days.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming replacement of his electric motorcycle, bruising to his wrists and loss of sensation in both thumbs and seeking \$1,000,000 as redress (**Board Review #34**). A 50H hearing was held on § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- § 87(2)(g) [REDACTED]

Squad No.: 15 _____

Investigator:	Timothy J. Wheelock _____ Signature	Inv. Timothy J. Wheelock _____ Print Title & Name	02/05/2025 _____ Date
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Squad Leader:	Simon Wang _____ Signature	IM Simon Wang _____ Print Title & Name	02/05/25 _____ Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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